

25STCV33488 25STCV33488

County: los-angeles

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Case Number: 25STCV33488 Hearing Date: September 16, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

TRACY

JERNIGAN, et al.,

Plaintiffs,

vs.

ANGELUS

FUNERAL HOME,

Defendant.

Case No.:

25STCV33488

Hearing

Date:

September 16, 2026

Hearing

Time: 10:00 a.m.

[TENTATIVE]

ORDER RE:

DEFENDANT

ANGELUS FUNERAL HOMES' DEMURRER TO PLAINTIFFS' COMPLAINT;

DEFENDANT

ANGELUS FUNERAL HOMES' MOTION TO STRIKE PLAINTIFFS' COMPLAINT

Background

On November 17, 2025, Plaintiffs Tracy Jernigan, T'ron Walker, Terrin Walker, Phillip Taylor, Lashay Rasmus, Lawanda Reece, Shaquita Turner, Stacie Jones, Alexis Green, Teresa Walker, Betty Walker, and Cleo Walker (collectively, "Plaintiffs") filed this action against Defendant Angelus Funeral Home ("Angelus"), alleging three causes of action for (1) negligence, (2) breach of contract, (3) intentional infliction of emotional distress, and (4) negligent infliction of emotional distress.

Angelus now demurs to the complaint and moves to strike portions of the complaint. Plaintiffs oppose. Angelus replied.

Discussion

On July 13, 2026, the Court continued this matter so that parties could meet and confer in compliance with Code of Civil Procedure sections 430.41, subdivision (a) and 435.5, subdivision (a). Defense counsel was required to meet and confer in person, by telephone or by video conference. On July 23, 2026, Defendant filed a meet and confer declaration in compliance with the July 13, 2026 ruling. (Kahn Dec. filed on 7/23/26, ¶15.) The meet and confer requirements are satisfied.

Demurrer to Complaint

Angelus demurs to the third

cause of action for intentional infliction of emotional distress and the fourth cause of action for negligent infliction of emotional distress. Angelus argues the IIED cause of action fails to state a claim against it, because the failure to obtain permits necessary to complete the burial of the deceased is not outrageous conduct. Angelus argues the NIED cause of action fails to state a claim against it, because it is duplicative of the negligence cause of action.

IIED. Conduct is outrageous if it is of “such

substantial quantity or enduring quality” that an individual in civilized society should not be expected to endure it.

((Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227); see also Cochran v. Cochran (1998) 65 Cal

App.4th 488, 494 [stating that the conduct must be “so outrageous in character, and so extreme in degree, as to go beyond all bounds of decency, and to be regarded as atrocious. . .”].) The

conduct must also have been carried out with the intention of causing, or reckless disregard of the probability of causing, emotional distress. (Crouch v. Trinity Christian Center of Santa Ana, Inc. (2019) 39 Cal.App.5th 994, 1007). Whether conduct is outrageous is usually a question of fact but can be determined as an issue of law. (Smith v. BP Lubricants USA Inc. (2021) 64 Cal.App.5th 138, 147 (plaintiff alleged outrageous conduct based on three racially offensive statements made by defendant's employee before 50 of plaintiff's coworkers and 3 of his supervisors)).

“The law limits claims of

intentional infliction of emotional distress to egregious conduct toward plaintiff proximately caused by defendant.

[Citation.] The only exception to this rule is that recognized when the defendant is aware, but acts with reckless disregard of the plaintiff and the probability that his conduct will cause severe emotional distress to that plaintiff.” (Christensen

v. Supr. Ct. (1991) 54 Cal.3d 868, 905 (plaintiffs lacked standing to bring class action claim for IIED because model complaint failed to state a cause of action for IIED.) “Where reckless disregard of the plaintiff's interests is the theory of recovery, the presence of the plaintiff at the time the outrageous conduct occurs is recognized as the element establishing a higher degree of culpability which, in turn, justifies recovery of greater damages by a broader group of plaintiffs than allowed on a negligent infliction of emotional distress theory.” (Id. at 906.)

Plaintiffs allege that Defendant failed to obtain the necessary permits to bury their family member as scheduled. (Complaint, ¶¶16-17.) Plaintiffs allege Defendant called them the night before the scheduled burial to inform them that Defendant failed to obtain the necessary permits for burial, even though it had sufficient time to do so. (Id. at ¶16.) Defendant allegedly offered a “mock burial” due to the inability to bury decedent as scheduled. (Id.) Plaintiff alleges Defendant intended to cause Plaintiffs emotional distress or acted with reckless disregard for the probability that Plaintiffs would suffer emotional distress. (Id. at ¶37.) Plaintiff alleges Defendant abused a position of authority and special relationship with them. (Id. at ¶36.)

Plaintiffs’ claims fail to allege outrageous conduct based on either intentional conduct or conduct undertaken with reckless disregard of the probability that such conduct would cause Plaintiffs’ emotional distress. Plaintiffs allege intentional conduct in the alternative but fail to allege conduct that was directed at them. Plaintiffs allege conduct taken in reckless disregard of the probability of emotional distress to Plaintiffs. Plaintiffs fail, however, to allege that they were present when the alleged outrageous conduct occurred.

Based on the factual allegations of the FAC, the failure to obtain the permit was negligent, not intentional or undertaken with reckless disregard for the probability that it would cause Plaintiffs emotional distress. Reasonable minds could only conclude that the conduct was not outrageous.

NIED. There are two classifications of plaintiff for NIED claims: (1) bystander; and (2) direct victim. California courts have repeatedly recognized that the negligent causing of emotional distress is not an independent tort, but the tort of negligence and, thus, traditional elements of duty, breach of duty, causation, and damages apply. Whether a defendant owes a duty of care is a question of law. Its existence depends upon the foreseeability of the risk and a weighing of policy considerations for and against imposition of liability. ((*Marlene F. v. Affiliated Psychiatric Medical Clinic, Inc.* (1989) 48 Cal.3d 583, 588); accord, *Christensen v. Superior Court* (1991) 54 Cal.3d 868, 882, 884.)

Plaintiffs allege a separate cause of action for

negligence. Plaintiffs do not allege
bystander liability. Plaintiffs' NIED
claim is therefore duplicative of the negligence cause of action, which alleges
emotional distress damages. (Complaint,
¶28.)

Angelus's demurrer to the third and fourth causes of
action for IIED and NIED is sustained without leave to amend.

Motion
to Strike

Angelus moves to strike ¶43 from the fourth cause of
action for NIED and ¶¶3 and 4 from the prayer for relief requesting attorney's
fees and costs and punitive damages respectively. In light of the ruling on demurrer to the
fourth cause of action, the motion is moot as to ¶43.

Plaintiff also concedes on reply that the request for
attorney's fees and costs should be stricken.
The motion to strike ¶3 of the prayer is therefore granted.

The only remaining claims after demurrer are for
negligence and breach of contract, neither of which support a punitive damage
claim. The motion to strike ¶4 of the
prayer is therefore granted.

Angelus's motion to strike is granted as to ¶¶3 and 4
of the prayer for relief and moot as to ¶43 of the fourth cause of action for
NIED.

Angelus is ordered to provide notice of this Order.

DATED: September 16, 2026

Hon. Teresa A.
Beaudet

Judge, Los

